

RFP No. 75D301-26-R-73374
World Trade Center Health Program National Program Administrator
ATT026, Offeror Non-Disclosure Agreement (NDA)

In consideration of being granted access to non-public information concerning the World Trade Center Health Program for the purpose of using this information to develop a proposal in response to the National Program Administrator solicitation, request for proposals (RFP) no. 75D301-26-R-73374,

(company name)

(the “offeror”) hereby consents to the terms in this agreement:

1. The offeror acknowledges that it will receive access to non-public information, including confidential and/or privileged information. For purposes of this agreement, confidential information means government information that is not or will not be generally available to the public. Privileged information means information which cannot be disclosed without the prior written consent of the Centers for Disease Control and Prevention (CDC).
2. The offeror agrees that it will not cause or encourage any of its employee to disclose, publish, divulge, release, or make known in any manner or to any extent, to any individual, any non-public information to which the offeror is being granted access under this agreement, except to anyone who, or anything that, is granted such access pursuant to an applicable lawful Government purpose.
3. The offeror agrees that it will protect from unauthorized disclosure all non-public information to which the offeror is being granted access under this agreement.
4. The offeror shall promptly report to appropriate CDC officials any unauthorized disclosure of which it has knowledge of the non-public information to which the offeror is being granted access under this agreement.
5. The offeror agrees to delete and remove from its information systems the non-public information to which the offeror is being granted access under this agreement following the offeror’s elimination from the competition or the award of a contract resulting from the National Program Administrator solicitation, whichever occurs first, or upon direction of the CDC.
6. To the extent that the offeror has a teaming partner or proposed subcontractor and this teaming partner or proposed subcontractor requires access to the non-public information for the purpose of using this information to assist the offeror in developing its proposal, the offeror agrees that it will not share non-public information directly with its teaming partner or proposed subcontractor, and that its teaming partner or proposed subcontractor will instead complete this agreement in its own name and return the completed and signed agreement to CDC directly. CDC will then furnish to the teaming partner or proposed subcontractor the non-public information through an encrypted e-mail. If this agreement has been completed by a teaming partner or a proposed subcontractor of an offeror, the term “offeror,” as used in this agreement, shall refer to the teaming partner or proposed subcontractor. CDC reserves the right to restrict access to non-public information notwithstanding the teaming partner or proposed subcontractor completing and returning the NDA.

Name and title of person authorized to bind the offeror

Signature of person authorized to bind the offeror